

**SUBSTITUTE FOR
SENATE BILL NO. 771**

A bill to amend 1978 PA 368, entitled
"Public health code,"
by amending sections 12751, 12752, 12757, and 12771 (MCL 333.12751,
333.12752, 333.12757, and 333.12771), section 12751 as amended and
section 12757 as added by 1980 PA 421, and by adding part 128.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

Sec. 12751. As used in sections 12752 to 12758 **and part 128:**

(a) "Acceptable alternative greywater system" means a ~~system~~
class of alternative systems for the treatment and disposal of
~~waste water which normally does~~ **wastewater that do** not receive
human body wastes or industrial waste and ~~is~~ **are** approved for use
by a local health department.

(b) "Acceptable innovative ~~or alternative~~ waste treatment



system" means a ~~decentralized or individual~~ **class of alternative**
 waste ~~system which has been~~ **treatment systems that are** approved for
 use by a local health department and ~~which is~~ **are** properly operated
 and maintained so as not to cause a health hazard or nuisance. An
 acceptable innovative ~~or alternative~~ waste treatment system may
 include, but is not limited to, an organic waste treatment system
 or compost toilet ~~which that~~ operates on the principle of
 decomposition of ~~heterogeneous organic materials~~ **feces or other**
excreta from the human body by aerobic and facultatively anaerobic
 organisms and utilizes an effectively aerobic composting process
~~which that~~ produces a stabilized humus. Acceptable innovative ~~or~~
~~alternative~~ waste treatment system does not include a septic
~~tank drain field~~ **tank and soil dispersal** system or any other system
~~which that~~ is determined by the department to pose a ~~similar~~ threat
 to the public health, safety, and welfare, and the quality of
 surface **water** and ~~subsurface waters~~ **groundwater** of this state.

(c) "Available public sanitary sewer system" means a public
 sanitary sewer system located in a right of way, easement, highway,
 street, or public way ~~which that~~ crosses, adjoins, or abuts ~~upon on~~
 the property and ~~passing~~ **passes** not more than 200 feet at the
 nearest point from a structure in which sanitary sewage originates.

(d) "Department" means the department of environment, Great
 Lakes, and energy.

(e) "Holding tank" means a system that utilizes all of the
 following to collect sanitary sewage:

(i) A septic tank with no outlet and that does not allow
 clarified liquid effluent to discharge for additional treatment by
 a soil dispersal system.

(ii) The services of a person engaged in septage waste



1 servicing.

2 (iii) Offsite disposal treatment at approved locations in
3 accordance with part 117 of the natural resources and environmental
4 protection act, 1994 PA 451, MCL 324.11701 to 324.11721.

5 (f) ~~(d)~~ "Person" means a person as defined in section 1106 or
6 a governmental entity.

7 (g) ~~(e)~~ "Public sanitary sewer system" means a sanitary sewer
8 or ~~a~~ combined sanitary and storm sewer used or intended for use by
9 the public for the collection and transportation of sanitary sewage
10 for treatment or disposal.

11 (h) ~~(f)~~ "Structure in which sanitary sewage originates" or
12 "structure" means a building in which toilet, kitchen, laundry,
13 bathing, or other facilities ~~which~~ **that** generate water-carried
14 sanitary sewage are used or ~~are~~ available for use for household,
15 commercial, industrial, or other purposes.

16 (i) "Violation notice" means a written notice or formal
17 enforcement action by the department or local health department in
18 response to a violation of this part or part 128.

19 Sec. 12752. (1) Public sanitary sewer systems are essential to
20 the health, safety, and welfare of the people of ~~the~~ **this** state.
21 ~~Septic tank disposal~~ **Onsite wastewater treatment** systems are
22 ~~subject to failure due to soil conditions or other reasons. Failure~~
23 **recognized as a cost-effective, long-term option for meeting public**
24 **health and water quality goals when the onsite wastewater treatment**
25 **system is properly managed. When an onsite wastewater treatment**
26 **system is not properly managed, failure** or potential failure of
27 ~~septic tank disposal systems~~ **an onsite wastewater treatment system**
28 poses a threat to the public health, safety, and welfare; presents
29 a potential for ill health, transmission of disease, mortality, and



1 economic blight; **may constitute a nuisance**; and constitutes a
2 threat, **or that is or may become injurious to**, to the quality of
3 surface **water** and ~~subsurface waters~~ **groundwater** of this state. The
4 connection to available public sanitary sewer systems at the
5 earliest, reasonable date is a matter for the protection of the
6 public health, safety, and welfare and necessary in the public
7 interest ~~which~~ **that** is declared as a matter of legislative
8 determination.

9 **(2) Onsite wastewater treatment systems and premises or**
10 **structures that are not connected to a public sanitary sewer system**
11 **are subject to regulation under part 128. Local health departments**
12 **shall implement and enforce this part and any rules promulgated**
13 **under this part, except sections 12753, 12754, and 12756, unless**
14 **otherwise delegated, and part 128 and rules promulgated under that**
15 **part under any applicable provisions of this act.**

16 **(3) The department or a local health department may inspect,**
17 **evaluate, investigate, or authorize an inspection, evaluation, or**
18 **investigation to be made, to ensure compliance with this part and**
19 **part 128. The right for a local health department to inspect or**
20 **investigate, as provided under section 2446, applies to the**
21 **department and a local health department when utilized in this part**
22 **and part 128. The rights and responsibilities pertaining to the**
23 **department of health and human services obtaining a warrant, as**
24 **provided under sections 2241 to 2247, also apply to either the**
25 **department or a local health department when utilized in accordance**
26 **with this part and part 128. At any reasonable time, an authorized**
27 **representative of the department or local health department may**
28 **enter on private or public property for the purpose of inspecting**
29 **and investigating conditions or practices that may be in violation**



1 of this part or part 128. An investigation or inspection under this
2 subsection must comply with the United States Constitution and the
3 state constitution of 1963. Failure to comply with requests to
4 inspect or investigate is subject to a violation notice issued by
5 the department and further enforcement action, including, when
6 necessary, referral to the department of attorney general. The
7 department or a local health department may collect reasonable fees
8 as authorized by section 2444 for services associated with
9 administering an onsite wastewater treatment program. The
10 department or an authorized local health department shall add a
11 \$5.00 public education and training fund fee to the application
12 fees collected under this subsection. A public education and
13 training fund fee collected under this subsection by a local health
14 department must be forwarded to the department quarterly.

15 (4) The public education and training fund is created as a
16 revolving fund in the department of treasury. The state treasurer
17 shall deposit the public education and training fund fees collected
18 under subsection (3) and money from any other source into the
19 public education and training fund. The state treasurer shall
20 direct the investment of the public education and training fund and
21 credit to the fund interest and earnings from fund investments.
22 Money that remains in the public education and training fund at the
23 end of the fiscal year carries forward into the next fiscal year.
24 The department is the administrator of the public education and
25 training fund and shall expend money from the fund to provide both
26 of the following:

27 (a) Public education and outreach regarding onsite wastewater
28 treatment systems.

29 (b) Training to local health departments, evaluators, the



department, and agents of the department.

(5) All of the following are subject to the requirements described under this part and part 128:

(a) A premises or structure.

(b) An outhouse, as that term is defined in section 12771.

(c) An innovative waste treatment system described under section 12757.

(d) An onsite wastewater treatment system.

(e) The owner of or a person that is responsible for any of the items described under subdivisions (a) to (d).

(6) An owner of an onsite wastewater treatment system is responsible to respond and remedy nuisances or conditions that meet the definition of failure in compliance with this part and part 128, and the rules promulgated under section 12817.

(7) As used in this section, "failure" and "onsite wastewater treatment system" mean those terms as defined in section 12801.

Sec. 12757. (1) Notwithstanding sections 12752 to 12756 **and part 128**, a person may install and use in a structure an acceptable innovative ~~or alternative~~ waste treatment system or an acceptable innovative ~~or alternative~~ waste treatment system in combination with an acceptable alternative greywater system. The installation and use of an acceptable innovative ~~or alternative~~ waste treatment system or an acceptable innovative ~~or alternative~~ waste treatment system in combination with an acceptable alternative greywater system in a structure ~~shall be~~ **is** subject to regulation by the local health department in accordance with **the statewide sewage code promulgated under section 12817, and** the ordinances and regulations of the local units of government in which the structure ~~lies.~~ **is located.** A local health department may inspect each



1 acceptable innovative ~~or alternative~~ waste treatment system within
 2 its jurisdiction at least once each year to determine if it is
 3 being properly operated and maintained. A local health department
 4 may charge the owner of an acceptable innovative ~~or alternative~~
 5 waste treatment system a reasonable fee for ~~such an~~ inspection and
 6 for the plan review and installation inspection. A copy of the
 7 approved application or permit to install and use an ~~alternative~~
 8 **acceptable innovative waste treatment** system and a copy of each
 9 maintenance inspection report ~~shall~~ **must** be forwarded to the
 10 department and ~~to the~~ local unit of government **and local health**
 11 **department** in which the structure ~~lies.~~ **is located.** The department
 12 shall maintain a record of ~~approved alternative systems~~ **an approved**
 13 **acceptable innovative waste treatment system** and ~~their~~ **its**
 14 maintenance and operation.

15 (2) The department ~~, after consultation with the state~~
 16 ~~plumbing board,~~ shall ~~adopt guidelines~~ **promulgate rules under**
 17 **section 12817** to assist local health departments in determining
 18 what are acceptable alternative greywater systems and what are
 19 acceptable innovative ~~or alternative~~ waste treatment systems. The
 20 department shall advise local health departments regarding the
 21 appropriate installation and use of acceptable innovative ~~or~~
 22 ~~alternative~~ waste treatment systems and acceptable innovative ~~or~~
 23 ~~alternative~~ waste treatment systems in combination with acceptable
 24 alternative greywater systems.

25 (3) A person ~~who~~ **that** installs and uses an acceptable
 26 innovative ~~or alternative~~ waste treatment system or an acceptable
 27 innovative ~~or alternative~~ waste treatment system in combination
 28 with an acceptable alternative greywater system ~~shall~~ **is** not ~~be~~
 29 exempt from ~~any a special assessments~~ **assessment** levied by a local



1 unit of government for the purpose of financing the construction of
 2 an available public sanitary sewer system.

3 (4) Notwithstanding sections 12752 to 12756 **and part 128**, an
 4 owner of a structure ~~using that uses~~ an acceptable innovative ~~or~~
 5 ~~alternative~~ waste treatment system in combination with an
 6 acceptable alternative greywater system ~~shall is~~ not ~~be~~ required to
 7 connect to an available public sanitary sewer system.

8 (5) An owner ~~who~~ **of a structure that uses an acceptable**
 9 **innovative waste treatment system that** does not connect to an
 10 available public sanitary sewer system ~~pursuant to~~ **under** subsection
 11 (4) ~~, shall is~~ not ~~be~~ required to pay a connection or user ~~fees~~ **fee**
 12 to a local unit of government except ~~those~~ **a** connection or user
 13 ~~fees which are~~ **fee that is** allocated for financing ~~of the~~
 14 construction of an available public sanitary sewer system. ~~In lieu~~
 15 **Instead of a** connection or user ~~fees~~ **fee**, an owner may be required
 16 by the local unit of government to pay a sewer availability fee if
 17 that fee is ~~to be~~ used for the purpose of paying a proportionate
 18 share of financing the construction of an existing available public
 19 sanitary sewer system. The exemption from **the payment of a**
 20 connection or user ~~fees~~ **fee** under this subsection ~~shall~~ **does** not
 21 apply to an owner connected to an available public sanitary sewer
 22 system on ~~the effective date of this act~~ **or before March 31, 1981.**

23 (6) A local unit of government may exempt an owner **of a parcel**
 24 proposing to use an acceptable innovative ~~or alternative~~ waste
 25 treatment system in combination with an acceptable alternative
 26 greywater system from connection or user fees related to the
 27 financing, construction, use, or maintenance of an available public
 28 sanitary sewer system.

29 Sec. 12771. (1) A person shall not maintain, or ~~permit~~ **allow**



1 to be maintained, on premises owned or controlled by the person an
 2 outhouse unless the outhouse is kept in a sanitary condition, and
 3 constructed and maintained in a manner ~~which~~**that** will not injure
 4 or endanger the public health.

5 (2) ~~The~~**Except as otherwise provided in this subsection, the**
 6 department shall promulgate rules ~~governing~~**that govern** the
 7 construction and maintenance of outhouses to safeguard the public
 8 health and ~~to~~ prevent the spread of disease and the existence of
 9 sources of contamination. **The statewide sewage code promulgated**
 10 **under section 12817 supersedes administrative rules promulgated**
 11 **under this subsection, as applicable.**

12 (3) A person ~~who~~**that** violates this section is guilty of a
 13 misdemeanor. An outhouse not constructed or maintained as required
 14 by this section or the rules promulgated ~~pursuant to~~**in accordance**
 15 **with** this section ~~shall be~~**is considered** a public nuisance.

16 (4) As used in this section, "outhouse" means a building or
 17 other structure not connected ~~with~~**to** a sewer system or ~~with~~**a**
 18 properly installed and operated ~~sewage disposal~~**soil dispersal**
 19 system, and which is used for the reception, disposition, or
 20 storage, either temporarily or permanently, of feces or other
 21 excreta from the human body.

22 PART 128

23 ONSITE WASTEWATER TREATMENT SYSTEMS

24 **Sec. 12801. (1) As used in this part and sections 12752 to**
 25 **12758:**

26 (a) "Alternative system" means a category of onsite wastewater
 27 treatment systems that are not conventional systems and that
 28 provide for an equivalent or better degree of protection for public
 29 health and the environment than a conventional system.



1 (b) "Approved onsite wastewater treatment system" means an
2 alternative system or conventional system for which a construction
3 permit and any required operating permits have been issued by the
4 department or a local health department having jurisdiction and an
5 inspection has found the system to be in compliance with all
6 required permits.

7 (c) "Authorized local health department" means a local health
8 department authorized by the department to administer this part and
9 part 127 under section 12803 for conventional systems and section
10 12805 for alternative systems.

11 (d) "Baffle" means a precast or preconstructed component of a
12 septic tank that serves to redirect, divert, or impede the flow of
13 wastewater through the septic tank in a beneficial manner.

14 (e) "Change in use or an increase in use" means a new or
15 increased use of the groundwater of this state for the disposal of
16 sanitary sewage through an onsite wastewater treatment system,
17 through 1 or more of the following:

18 (i) Connection of a new structure to an existing onsite
19 wastewater treatment system.

20 (ii) Increase in use of the structure resulting in an increased
21 sanitary sewage flow rate that exceeds the system design capacity.

22 (iii) Change in purpose for which a structure or portion of a
23 structure is utilized or occupied between residential,
24 nonresidential, or another type of nonresidential use or occupancy.

25 (iv) Increase in the wastewater effluent strength.

26 (v) Any other change or increase in use that may reasonably be
27 expected to affect the ability of the onsite wastewater treatment
28 system to function as intended or perform as designed.

29 (f) "Construction permit" means a permit to install,



1 construct, alter, or repair an onsite wastewater treatment system.

2 (g) "Conventional system" means a category of onsite
3 wastewater treatment system that contains a watertight septic tank
4 and soil dispersal system that depends solely on subsurface soil
5 for treatment and dispersal and does not include any components of
6 an approved alternative technology.

7 (h) "Department" means the department of environment, Great
8 Lakes, and energy.

9 (i) "Effluent" means liquid flowing out of a component or
10 device.

11 (j) "Elements of a nonconforming system" means the presence of
12 1 or more of the following that may, as determined by an authorized
13 local health department, lead to a failure or improper functioning
14 of the onsite wastewater treatment system:

15 (i) Evidence of compaction or settling in the area of the
16 onsite wastewater treatment system that limits drainage in the area
17 of the system on the parcel, and rain and snow melt cannot
18 percolate through the system.

19 (ii) The soil dispersal system is hydraulically saturated.

20 (iii) Evidence of missing or damaged appurtenances of the onsite
21 wastewater treatment system.

22 (iv) Excessive biomatting is noted in 2 or more core samples
23 performed across the soil dispersal system that indicates that the
24 soil is no longer accepting effluent at a sufficient rate of
25 infiltration.

26 (v) Evidence of sustained operating levels within the septic
27 tank above the invert of the septic tank outlet.

28 (vi) The system includes a proprietary product or
29 nonproprietary technology that meets the definition of an

1 alternative system but that was not included in the construction
2 permit.

3 (vii) The system is located too close to a drinking water
4 supply well or surface waters as determined by the statewide sewage
5 code.

6 (viii) The system has insufficient soil depth below the soil
7 dispersal system to provide adequate wastewater treatment before
8 dispersal to the groundwater.

9 (ix) Other conditions that may reasonably be expected to alter
10 the intended functionality of the onsite wastewater treatment
11 system.

12 (k) "Evaluator" means an individual registered under section
13 12823.

14 (l) "Experimental onsite wastewater treatment system" means a
15 class of alternative onsite wastewater treatment system that is in
16 experimental use and requires further testing in order to provide
17 sufficient information to determine its acceptability.

18 (m) "Failure" means a malfunction or condition of an onsite
19 wastewater treatment system that consists of 1 or more of the
20 following, as determined by an authorized local health department:

21 (i) A discharge of sanitary sewage to the surface of the
22 ground.

23 (ii) A discharge of sanitary sewage or effluent into surface
24 water, storm drains, or directly into groundwater.

25 (iii) The inability of the onsite wastewater treatment system to
26 accept sanitary sewage at the rate being discharged, resulting in
27 the backup of sanitary sewage into a structure.

28 (iv) A structural failure or leaking of a septic tank or tanks
29 or other associated components and appurtenances.



1 (v) A discharge of treated wastewater that does not comply
2 with applicable standards established in the statewide sewage code.

3 (vi) An illicit connection or illicit discharge.

4 (vii) An absence of all or a key part of an onsite wastewater
5 treatment system, as determined in accordance with the statewide
6 sewage code.

7 (viii) The discharge of sanitary sewage or effluent is
8 endangering a public or private water supply.

9 (ix) The inability to access key parts of the onsite wastewater
10 treatment system.

11 (x) The authorized local health department determines that the
12 elements of a nonconforming system contribute to the overall
13 failure of the onsite wastewater treatment system in accordance
14 with the statewide sewage code.

15 (n) "Fund" means the onsite wastewater treatment system
16 administration fund created in section 12829.

17 (o) "Groundwater" means water in the ground that is in the
18 zone of saturation.

19 (p) "Illicit connection" means a physical, constructed
20 connection that allows the bypassing of required treatment by an
21 onsite wastewater treatment system in violation of law.

22 (q) "Illicit discharge" means any direct or indirect discharge
23 of sanitary sewage in violation of law.

24 (r) "Imminent danger" means a condition or practice that could
25 reasonably be expected to cause death, disease, or serious physical
26 harm immediately or before the imminence of the danger can be
27 eliminated through enforcement procedures.

28 (s) "Maintenance" means routine or periodic action taken to
29 ensure proper system performance, extend system longevity, and

1 ensure a system meets performance requirements as designed,
2 including servicing the system through cleaning, septic tank
3 pumping, effluent filter cleaning or replacements, flushing
4 laterals, vegetation removal, effluent sampling if applicable,
5 adjustments to subcomponents, and other actions as recommended by a
6 product manufacturer and in accordance with the statewide sewage
7 code.

8 (t) "Management" means the siting, design, permitting,
9 construction, installation, inspection, operation, maintenance,
10 alteration, evaluation, rejuvenation, closure, and repair of onsite
11 wastewater treatment systems to ensure that onsite wastewater
12 treatment systems meet required performance standards established
13 in the statewide sewage code that are protective of public health
14 and the environment.

15 (u) "Minor repair" means the act of fixing or replacing
16 substandard or damaged subcomponents, such as septic tank access
17 lids, safety devices, risers, septic tank outlet baffle or outlet
18 devices, switches, solid piping located outside the soil dispersal
19 system, pumps, valves, and other subcomponents as determined in
20 accordance with the statewide sewage code.

21 (v) "Nonproprietary technology" means a wastewater treatment
22 or distribution technology, method, or product not subject to a
23 patent or trademark.

24 (w) "Onsite wastewater treatment system" or "system" means a
25 system of components and appurtenances, also referred to as a
26 septic system, septic tank disposal system, sewage system, sewage
27 disposal system, or subsurface sewage disposal system, that is
28 used, or intended to be used, to collect, hold, and treat less than
29 10,000 gallons per day of sanitary sewage through 1 of the



1 following methods:

2 (i) Subsurface discharge to a soil dispersal system.

3 (ii) Subsurface discharge to another system that meets the
4 requirements of the statewide sewage code.

5 (iii) A holding tank, outhouse, innovative system, or other
6 component that collects and stores sanitary sewage until being
7 transported to an approved location for the necessary final
8 dispersal or final treatment.

9 (x) "Onsite wastewater treatment system evaluation" or
10 "evaluation" means an assessment of the sanitary sewage handling
11 methods where a premises or structure is not connected to a public
12 sanitary sewer system or an evaluation of an onsite wastewater
13 treatment system conducted under section 12821.

14 (y) "Operating level" means the elevation of effluent in a
15 tank. For a septic tank, operating level is determined by the
16 invert of the outlet piping.

17 (z) "Operating permit" means a renewable and revocable permit,
18 if required, to operate and maintain an onsite wastewater treatment
19 system in compliance with specific operational or performance
20 requirements.

21 (aa) "Outlet device" means any fixture on or around the outlet
22 pipe of a septic tank that serves to slow down, divert, screen, or
23 otherwise control the flow of effluent out of the septic tank.

24 (bb) "Point of sale" means the time at which the sale or
25 transfer of a parcel of real estate is complete. Point of sale does
26 not include a transfer described under section 3 of the seller
27 disclosure act, 1993 PA 92, MCL 565.953.

28 (cc) "Proprietary product" means a treatment or distribution
29 product held under a patent or trademark that significantly



1 contributes to the treatment, performance, and attainment of
2 effluent quality or dispersal objectives.

3 (dd) "Public sanitary sewer system" means that term as defined
4 in section 12751 that is operated by a local unit of government.

5 (ee) "Sanitary sewage" means treated or untreated waste that
6 contains 1 or more of the following:

7 (i) Feces or other excreta from the human body.

8 (ii) Waste generated as a result of food service establishment
9 activities.

10 (iii) Waste generated from sanitary conveniences, including, but
11 not limited to, toilets, urinals, sinks, showers, bathtubs,
12 dishwashers, garbage grinders, and household laundry fixtures
13 available for use associated with office, industrial, commercial,
14 recreational, institutional, or other purposes.

15 (iv) Additional domestic flow generated as part of a household
16 activity.

17 (ff) Sanitary sewage does not include roof runoff, building
18 footing drain, water softener backwash, commercial laundry
19 fixtures, wastes from industrial or commercial processes, and
20 stormwater.

21 (gg) "Septic tank" means a watertight, covered receptacle for
22 collection and treatment of sanitary sewage that does all of the
23 following:

24 (i) Receives the discharge of sanitary sewage.

25 (ii) Separates settleable and floating solids from the liquid.

26 (iii) Digests organic matter by anaerobic bacterial action.

27 (iv) Stores digested solids through a period of detention.

28 (v) Allows clarified liquid effluent to discharge for
29 additional treatment by components and appurtenances, such as a



1 soil dispersal system.

2 (vi) Attenuates flows.

3 (hh) "Soil dispersal system" means a method in which septic
4 tank effluent or treated effluent is distributed by a network of
5 piping or other approved material to an approved method of
6 subsurface dispersal.

7 (ii) "Statewide sewage code" means the rules promulgated under
8 section 12817 that provide for the management of onsite wastewater
9 treatment systems.

10 (jj) "Structure in which sanitary sewage originates" or
11 "structure" means a building in which toilet, kitchen, laundry,
12 bathing, or other facilities that generate water-carried sanitary
13 sewage are used or are available for use for household, commercial,
14 industrial, or other purposes.

15 (kk) "Surface water" means that term as defined in section
16 3112a of the natural resources and environmental protection act,
17 1994 PA 451, MCL 324.3112a.

18 (ll) "Technical advisory committee" means the technical
19 advisory committee established by the department under section
20 12815.

21 (2) In addition, article 1 contains general definitions and
22 principles of construction applicable to all articles of this code.

23 Sec. 12803. (1) Not later than 180 days after the department
24 promulgates rules under section 12817, a local health department
25 shall create a plan to implement and administer this part and part
26 127 for the management of conventional systems and submit the plan
27 to the department for authorization. Not later than 120 days after
28 the local health department submits the plan to the department, the
29 department shall review the plan to ensure the plan conforms to the



1 requirements in the statewide sewage code and provide corrective
2 guidance as necessary, and authorize the local health department to
3 administer this part for conventional systems. Not later than 1
4 year after the department promulgates rules under section 12817,
5 the local health department shall implement the approved plan to
6 administer this part for conventional systems. The local health
7 department shall do all of the following:

8 (a) Follow the standards established under this part and part
9 127, in accordance with section 2441, for the purposes of carrying
10 out the responsibilities of this part and part 127 and the
11 statewide sewage code, including authority to do all of the
12 following:

13 (i) Conduct preconstruction site evaluations, issue
14 construction permits, ensure installations are performed by
15 qualified individuals, as specified in the statewide sewage code,
16 and perform interim inspections during construction and final
17 inspections on completion of construction, if required.

18 (ii) Issue notices and penalties to persons that violate this
19 part, part 127, the rules promulgated under this part or part 127,
20 or the statewide sewage code, or endanger public health or the
21 environment.

22 (iii) Respond to complaints of failure of an onsite wastewater
23 treatment system or improper discharge of sanitary sewage.

24 (iv) Ensure long-term maintenance of onsite wastewater
25 treatment systems through construction permit requirements or the
26 issuance of operating permits, if applicable, for the management of
27 an onsite wastewater treatment system as described in the statewide
28 sewage code.

29 (v) Conduct evaluations under section 12821, as applicable.

1 (vi) Review variances in accordance with the statewide sewage
2 code.

3 (b) Maintain qualified staff to administer a conventional
4 onsite wastewater treatment system program. Except as otherwise
5 provided under subsection (2), a staff member shall meet the
6 following minimum educational and training requirements to work
7 independently in an onsite wastewater treatment system program:

8 (i) One of the following:

9 (A) Possess a minimum of a 4-year bachelor of science or arts
10 degree with a major in environmental health, chemistry, biology,
11 geology, engineering, or an equivalent degree.

12 (B) Meet the educational eligibility requirements for the
13 registered environmental health specialist or registered sanitarian
14 credential exam.

15 (ii) Obtain a minimum of 8 hours of training that includes a
16 minimum of 4 hours of field training on the United States
17 Department of Agriculture soil classification system from the
18 department or another entity approved by the department.

19 (iii) Demonstrate competency and understanding of the statewide
20 sewage code, criteria for onsite wastewater treatment systems
21 provided in state law and rules, or any successor state law and
22 rules, the land division act, 1967 PA 288, MCL 560.101 to 560.293,
23 and the condominium act, 1978 PA 59, MCL 559.101 to 559.276.

24 (iv) Conduct a minimum of 10 supervised preconstruction field
25 or site evaluations of conventional onsite wastewater system
26 designs and 10 supervised final inspections with senior staff or a
27 supervisor.

28 (v) Conduct a minimum of 5 solo preconstruction field
29 evaluations of onsite wastewater system designs and 5 solo final



1 inspections demonstrating understanding of the conventional onsite
2 wastewater treatment program as determined by senior staff or a
3 supervisor.

4 (vi) Attend and observe a minimum of 2 complete onsite
5 wastewater system installations.

6 (2) The following individuals are exempt from the requirements
7 of subsection (1)(b):

8 (a) A staff member of an authorized local health department
9 that has worked independently in an onsite wastewater treatment
10 system program for at least 3 years before the effective date of
11 the rules promulgated by the department under section 12817 and has
12 demonstrated competency and knowledge of onsite wastewater
13 treatment systems.

14 (b) A staff member that has limited duties within the onsite
15 wastewater treatment system program, has demonstrated competency
16 and knowledge, and is overseen by a sanitarian in accordance with
17 the rules promulgated under section 12817. As used in this
18 subdivision, "sanitarian" means that term as defined in section
19 18401.

20 Sec. 12805. (1) Not later than 180 days after the department
21 promulgates rules under section 12817, a local health department
22 shall create a plan to implement and administer this part and part
23 127 for the management of alternative systems and submit the plan
24 to the department for authorization. Not later than 120 days after
25 the local health department submits the plan to the department, the
26 department shall review the plan to ensure the plan conforms to the
27 requirements in the statewide sewage code and provide corrective
28 guidance as necessary, and authorize the local health department to
29 administer this part for alternative systems. Not later than 2



1 years after the department promulgates rules under section 12817,
2 the local health department shall implement the approved plan to
3 administer this part for alternative systems. The local health
4 department shall do all of the following:

5 (a) Meet the requirements of section 12803.

6 (b) Follow the standards established under this part, in
7 accordance with section 2441, for the purpose of carrying out the
8 responsibilities of this part, including authority to do all of the
9 following:

10 (i) Review, evaluate, approve, or reject applications, plans,
11 and specifications to alter, install, repair, or replace
12 alternative systems.

13 (ii) Issue construction permits authorizing the installation of
14 alternative systems in accordance with section 12807.

15 (iii) Ensure long-term maintenance of alternative systems
16 through the issuance of operating permits after an operation and
17 maintenance evaluation determines compliance.

18 (2) Existing local health department regulations or guidance
19 for a particular type of alternative system remain in effect until
20 minimum standards and criteria for that type of system are
21 developed by the department in accordance with section 12813.

22 (3) An authorized local health department that administers an
23 alternative system construction and operating permitting program
24 within its jurisdiction shall issue a construction permit for the
25 installation of an alternative system if all of the following
26 conditions are met:

27 (a) The alternative system does either of the following:

28 (i) Utilizes a proprietary product that is registered for use
29 by the department.



1 (ii) Utilizes nonproprietary technology in accordance with the
2 standards and guidance provided by the department in accordance
3 with the statewide sewage code.

4 (b) The soils, site conditions, and operating conditions at
5 the location are appropriate for the use of the alternative system
6 in compliance with the statewide sewage code.

7 (c) An acceptable management plan is developed and includes
8 operation and maintenance evaluations, in accordance with the
9 statewide sewage code.

10 (4) A person that installs and uses an alternative system is
11 not exempt from any special assessment levied by a local unit of
12 government for the purpose of financing the construction of an
13 available public sanitary sewer system.

14 (5) Notwithstanding this part and sections 12752 to 12756, an
15 owner of a structure that uses an alternative system is not
16 required to connect to an available public sanitary sewer system.

17 (6) An owner of a structure that uses an alternative system
18 that does not connect to an available public sanitary sewer system
19 under subsection (5) is not required to pay a connection or user
20 fee to a local unit of government, except a connection or user fee
21 that is allocated for financing the construction of an available
22 public sanitary sewer system. The local unit of government may
23 require the owner to pay a sewer availability fee if the fee is
24 used for the purpose of paying a proportionate share of the
25 financing of the construction of an existing available public
26 sanitary sewer system. The exemption from the payment of a
27 connection or user fee under this subsection does not apply to an
28 owner that is connected to an available public sanitary sewer
29 system on or before March 31, 1981.



1 Sec. 12807. (1) A person shall not install, construct, alter,
2 extend, repair, or replace an onsite wastewater treatment system
3 unless the person receives a construction permit from the
4 authorized local health department, and the department when
5 applicable, subject to any permit required under part 31 or 41 of
6 the natural resources and environmental protection act, 1994 PA
7 451, MCL 324.3101 to 324.3134 and 324.4101 to 324.4113. A person
8 does not need a construction permit under this section to conduct
9 maintenance on or for a minor repair to an onsite wastewater
10 treatment system that can be managed as described in the rules
11 promulgated under section 12817.

12 (2) A person shall obtain a construction permit for an onsite
13 wastewater treatment system from an authorized local health
14 department in compliance with this part and construct the system in
15 accordance with the statewide sewage code.

16 (3) A person that fails to obtain a construction permit or
17 comply with this part and part 127 is subject to enforcement action
18 by the local health department under section 12827.

19 (4) A governmental entity with building code authority shall
20 not issue a building permit for a structure, residence, or facility
21 served, or intended to be served, by an onsite wastewater treatment
22 system unless 1 of the following is obtained from the authorized
23 local health department:

24 (a) A construction permit for the onsite wastewater treatment
25 system.

26 (b) An authorization for the continued use of the onsite
27 wastewater treatment system.

28 (c) An authorization for a change in use or an increase in use
29 of the existing onsite wastewater treatment system.



1 (5) A governmental entity with building code authority shall
2 not issue a certificate of occupancy for a structure, residence, or
3 facility served by an onsite wastewater treatment system unless an
4 approved final inspection report was issued by the authorized local
5 health department or an authorization was obtained under subsection
6 (4) (b) or (c) .

7 (6) A governmental entity with building code authority that
8 issues a building permit or certificate of occupancy without
9 obtaining a permit or authorization required under subsection (4)
10 or an approved final inspection report under subsection (5), as
11 applicable, may be subject to an enforcement action by the
12 department of licensing and regulatory affairs. The actions of the
13 department of licensing and regulatory affairs under this
14 subsection may include, but are not limited to, enforcement actions
15 against a building official or inspector as provided under the
16 skilled trades regulation act, 2016 PA 407, MCL 339.5101 to
17 339.6133.

18 Sec. 12811. (1) Subject to subsection (4), beginning 45 days
19 after the department promulgates rules under section 12817, a
20 person shall not install, construct, alter, or repair a proprietary
21 product unless that product is registered for use in this state by
22 the department and a construction permit is obtained under section
23 12807.

24 (2) Beginning 45 days after the department promulgates rules
25 under section 12817, a person may apply for registration of a
26 proprietary product under subsection (1) by submitting an
27 application on a form and in a manner prescribed by the department.
28 The department may charge a fee of \$3,000.00 to cover its costs in
29 reviewing applications for registration under this section. Money



1 received by the department must be forwarded to the state treasurer
2 for deposit into the fund. Not later than 30 days after receipt of
3 an application and fee, the department shall review the application
4 and determine whether the application is administratively complete.
5 Not later than 60 days after receipt of an administratively
6 complete application, the department shall approve or deny the
7 registration and notify the applicant in writing. In approving and
8 registering a proprietary product for use in this state, the
9 department shall consider the recommended standards and guidance
10 provided by the technical advisory committee. A registration under
11 this section is specific to a product model within a brand or
12 manufacturer's line and is valid for 5 years. A registration must
13 be renewed in the same manner as an initial registration under this
14 subsection. Beginning 3 years after the effective date of the
15 amendatory act that added this section, and once every 3 years
16 thereafter, the department shall adjust the fee specified under
17 this subsection by an amount determined by the state treasurer at
18 the end of the preceding fiscal year to reflect the cumulative
19 percentage change in the Detroit Consumer Price Index, and rounded
20 to the nearest \$100.00. As used in this subsection, "Detroit
21 Consumer Price Index" means the most comprehensive index of
22 consumer prices available for the Detroit-Warren-Dearborn area from
23 the Bureau of Labor Statistics of the United States Department of
24 Labor.

25 (3) The department may deny, suspend, or revoke a registration
26 under this section following a contested case hearing conducted in
27 accordance with the administrative procedures act of 1969, 1969 PA
28 306, MCL 24.201 to 24.328, if the department finds any of the
29 following:



1 (a) The registration was obtained or was attempted to be
2 obtained through misrepresentation or fraud.

3 (b) The registrant transacted business under its registration
4 using fraudulent, coercive, or dishonest practices.

5 (c) The applicant or registrant failed to pay the required
6 registration application review fees.

7 (d) Field reviews, conducted in accordance with the statewide
8 sewage code, determine that the proprietary product does not
9 function or perform as designed.

10 (e) The proprietary product fails to meet the requirements of
11 the statewide code.

12 (4) An owner of an onsite wastewater treatment system does not
13 need to register a proprietary product under this section if both
14 of the following conditions are met:

15 (a) The proprietary product was installed as part of the
16 construction of an approved onsite wastewater treatment system
17 before the effective date of this part.

18 (b) The authorized local health department determines the
19 continued use of the proprietary product can be managed in
20 accordance with the statewide sewage code.

21 (5) The requirements of this section apply to a person that
22 represents a proprietary product manufacturer that is applying for
23 registration of a proprietary product under subsection (1) before
24 an installation that occurs after the effective date of this part.

25 Sec. 12813. The department shall develop minimum standards and
26 criteria for local health departments when permitting different
27 types of onsite wastewater treatment systems, including, but not
28 limited to, the following categories:

29 (a) Nonproprietary technologies such as sand filters.



1 (b) Proprietary products such as aerobic treatment systems and
2 packed bed filters.

3 (c) Proprietary products such as subsurface dripline products
4 or gravelless distribution products.

5 (d) Systems that have not been installed or constructed but
6 for which a construction permit was issued by the local health
7 department before the effective date of the statewide sewage code.

8 Sec. 12815. (1) The technical advisory committee is created in
9 the department to advise and provide recommendations to the
10 department regarding the rules promulgated under section 12817. The
11 technical advisory committee may advise the department on all of
12 the following:

13 (a) Recommended standards and guidance for the management of
14 onsite wastewater treatment systems.

15 (b) Nonproprietary technologies and recommended standards and
16 guidance for the use of nonproprietary technologies.

17 (c) Testing and design standards used for proprietary product
18 registration and recommended standards and guidance for use of
19 proprietary products.

20 (d) Recommended standards and guidance for alternative onsite
21 wastewater treatment systems and the severity of a failure of a
22 system.

23 (e) Onsite wastewater treatment system evaluation elements and
24 reporting.

25 (f) Registration, training, and educational requirements for
26 evaluators and other individuals involved in the installation,
27 maintenance, and evaluation of onsite wastewater treatment systems
28 that are consistent with trainings established by professional
29 organizations that represent decentralized wastewater management



1 professionals recognized by the department or recognized by another
2 entity approved by the department.

3 (g) Ethical standards for evaluators and other individuals
4 involved in the installation, maintenance, and evaluation of onsite
5 wastewater treatment systems that are consistent with the ethical
6 standards established by professional organizations that represent
7 decentralized wastewater management professionals recognized by the
8 department.

9 (h) Documentation required to be submitted to the department
10 for qualifying and registering evaluators under section 12823.

11 (i) Qualifications of individuals other than evaluators
12 involved in the management of onsite wastewater treatment systems.

13 (j) Continuing education requirements for individuals involved
14 in the management of onsite wastewater treatment systems.

15 (k) Recommended standards for implementing this part.

16 (l) Guidance and standards for registering practitioners that
17 construct and maintain onsite wastewater treatment systems.

18 (m) Recommended standards and guidance for owners of onsite
19 wastewater treatment systems for the maintenance of onsite
20 wastewater treatment systems.

21 (n) Recommended requirements for safety devices, which may
22 include, but are not limited to, standards for safety devices for
23 septic tanks that were installed or altered before the effective
24 date of the amendatory act that added this section.

25 (o) Recommended standards for septic tank access risers that
26 extend to the ground surface.

27 (p) Proposed conflict-of-interest system for evaluators and
28 individuals who install, construct, alter, or repair onsite
29 wastewater treatment systems. The conflict-of-interest system must



1 not preclude evaluators from owning businesses involved in the
2 installation, construction, alteration, or repair of onsite
3 wastewater treatment systems and must provide a means for an
4 evaluator or other individual to perform these services that may
5 result from an evaluation.

6 (q) Recommended requirements for evaluations that are in
7 addition to the requirements imposed under section 12821, including
8 but not limited to, all of the following:

9 (i) Standard operating procedures to determine septic tank
10 pumping requirements at the time of an evaluation and, if a septic
11 tank is pumped out, within 45 days before an evaluation.

12 (ii) Standard operating procedures for an evaluation conducted
13 if compaction may limit drainage, if a structure is not occupied or
14 in ordinary use, if the ground is frozen or snow covered, and if
15 access to the onsite wastewater treatment system is not feasible.

16 (iii) Tests and procedures for evaluators to perform to ensure
17 the validity of onsite wastewater treatment system evaluations.

18 (r) Proposed criteria for allowing the continued use of an
19 onsite wastewater treatment system that was constructed before the
20 effective date of the statewide sewage code if the use of an onsite
21 wastewater treatment system can be managed in a manner that does
22 all of the following:

23 (i) Ensures an effective level of treatment of sanitary sewage
24 determined to be necessary based on risk.

25 (ii) Protects public health and the environment.

26 (iii) Protects surface waters of this state.

27 (iv) Protects groundwater quality.

28 (2) The technical advisory committee must consist of the
29 following members who have technical or scientific knowledge



1 applicable to onsite wastewater treatment systems:

2 (a) All of the following voting members:

3 (i) Four regional local health department representatives
4 recommended by a state organization representing local health
5 departments. Of the 4 regional local health department
6 representatives appointed under this subdivision, 1 representative
7 must be from the northern Lower Peninsula, 1 representative must be
8 from the southeast Lower Peninsula, 1 representative must be from
9 the southwest Lower Peninsula, 1 representative must be from the
10 Upper Peninsula. The 4 members appointed under this subsection must
11 be appointed by the department.

12 (ii) One member appointed by the speaker of the house of
13 representatives.

14 (iii) One member appointed by the senate majority leader.

15 (iv) All of the following members appointed by the governor:

16 (A) One professional engineer.

17 (B) One distributor or supplier of onsite system products and
18 devices.

19 (C) One onsite wastewater system installer who has completed
20 training developed by the National Onsite Wastewater Recycling
21 Association or other professional organization that represents
22 decentralized wastewater management professionals recognized by the
23 department.

24 (D) One onsite wastewater system service provider that
25 represents septage waste servicing business licensed under part 117
26 of the natural resources and environmental protection act, 1994 PA
27 451, MCL 324.11701 to 324.11721.

28 (E) One individual with knowledge of the use of onsite
29 wastewater treatment systems representing users of onsite



1 wastewater treatment systems.

2 (F) One representative from a state organization specializing
3 in the protection of public health and the environment through
4 improved water quality.

5 (G) One individual who has performed at least 10 evaluations
6 under preexisting onsite wastewater treatment system ordinances or
7 regulations.

8 (H) One soil scientist or academic representative specializing
9 in soil science.

10 (b) One nonvoting member who is a department representative
11 appointed by the director of the department.

12 (3) The members first appointed to the technical advisory
13 committee must be appointed not later than 90 days after the
14 effective date of the amendatory act that added this part.

15 (4) Members of the technical advisory committee shall serve
16 for terms of 4 years or until a successor is appointed, except that
17 of the members first appointed, 6 shall serve for 2 years, and 8
18 shall serve for 3 years.

19 (5) If a vacancy occurs on the technical advisory committee,
20 an individual must be appointed in the same manner as the original
21 appointment to fill the vacancy for the balance of the term.

22 (6) The governor may remove a member of the technical advisory
23 committee for incompetence, dereliction of duty, malfeasance,
24 misfeasance, or nonfeasance in office, or any other good cause.

25 (7) Not later than 120 days after the effective date of the
26 amendatory act that added this section, the governor shall call the
27 first meeting of the technical advisory committee. At the first
28 meeting, the technical advisory committee shall create a charter or
29 bylaws, which includes the amount of and frequency at which the



1 technical advisory committee shall meet, as it considers necessary
2 or appropriate. The technical advisory committee shall meet if
3 requested by the department.

4 (8) Seven of the members of the technical advisory committee
5 constitute a quorum for the transaction of business at a meeting of
6 the technical advisory committee. A majority of the members present
7 and serving are required for official action of the technical
8 advisory committee.

9 (9) A meeting of the technical advisory committee may be
10 conducted in whole or in part electronically by telephonic or video
11 conferencing with remote participation.

12 (10) A writing prepared, owned, used, in the possession of, or
13 retained by the technical advisory committee in the performance of
14 an official function is subject to the freedom of information act,
15 1976 PA 442, MCL 15.231 to 15.246.

16 (11) Members of the technical advisory committee shall serve
17 without compensation. However, members of the technical advisory
18 committee may be reimbursed for their actual and necessary expenses
19 incurred in the performance of their official duties as members of
20 the technical advisory committee.

21 (12) The technical advisory committee shall consider the
22 following in its advice to the department:

23 (a) Sufficient theory and applied research to document
24 efficacy of onsite wastewater treatment systems.

25 (b) Potential use, local soil conditions, and other factors
26 that may affect the operation of onsite wastewater treatment
27 systems.

28 (c) Field performance data that confirm the product or
29 technology functions when installed onsite as indicated by



1 submitted documents.

2 (d) Certification of onsite wastewater treatment systems by
3 NSF International or another recognized certifying agency.

4 (13) The technical advisory committee may consult with experts
5 in the field of management of onsite wastewater treatment systems
6 and other individuals with knowledge and expertise in the
7 management of onsite wastewater treatment systems, which may
8 include, but are not limited to, any of the following:

9 (a) Hydrogeologists with hydrogeology field experience.

10 (b) Microbiologists.

11 (c) Other scientists or academics.

12 (d) Onsite wastewater treatment systems product manufacturers.

13 (e) Individuals whose premises or structure is served by an
14 approved onsite wastewater treatment system.

15 (f) Environmental organizations.

16 (g) Financial organizations.

17 (h) Home builders.

18 (i) Real estate licensees.

19 (j) Local units of government.

20 (k) Conservation districts.

21 (14) The department shall provide administrative support to
22 the technical advisory committee. The technical advisory
23 committee's initial advice and recommendations under subsection (1)
24 may be provided to the department not later than 2 years after the
25 effective date of the amendatory act that added this section.

26 Sec. 12817. Not later than 3 years after the effective date of
27 the amendatory act that added this part, the department, in
28 consultation with the technical advisory committee as provided
29 under section 12815, shall promulgate rules that establish a



1 statewide sewage code that complies with sections 12751 to 12833
2 and contains provisions for the management of onsite wastewater
3 treatment systems and performance-based standards for systems
4 categorized as conventional and alternative onsite wastewater
5 treatment systems that provide baseline protection for public
6 health and the environment. The statewide sewage code must include
7 all of the following provisions:

8 (a) Qualifications of any person involved in the installation
9 and management of onsite wastewater treatment systems.

10 (b) Standards for onsite wastewater treatment systems,
11 products, components, and devices.

12 (c) Standards for the installation of onsite wastewater
13 treatment systems.

14 (d) Standards for wastewater effluent.

15 (e) Standards for the continued use of an onsite wastewater
16 treatment system.

17 (f) Criteria for granting variances under sections 12803 and
18 12821.

19 (g) Any other requirement necessary to implement and carry out
20 this part and part 127.

21 Sec. 12818. A person that does either of the following is
22 guilty of a misdemeanor punishable by imprisonment for not more
23 than 1 year or a fine of not more than \$10,000.00 for each
24 violation, or both:

25 (a) Submits or provides to the department or authorized local
26 health department false, misleading, or fabricated information
27 related to an onsite wastewater treatment system.

28 (b) Knowingly completes an onsite wastewater treatment system
29 evaluation for purposes of compliance with section 12821(4) and is



1 not an evaluator.

2 Sec. 12821. (1) Beginning immediately after the department
3 promulgates rules under section 12817 and subject to subsection
4 (12), an owner of a premises or structure in which sanitary sewage
5 originates, that is not connected to a public sanitary sewer system
6 operated by a local unit of government must obtain an onsite
7 wastewater treatment system evaluation in accordance with the
8 schedule established under subsections (2) and (3).

9 (2) An onsite wastewater treatment system evaluation conducted
10 under this part, including an evaluation conducted under a point of
11 sale ordinance or regulation subject to section 12831, must be
12 conducted by an authorized local health department or evaluator in
13 accordance with this part and in accordance with the following
14 timeline:

15 (a) Within 10 years after the department promulgates rules
16 under section 12817, if the onsite wastewater treatment system is
17 20 years old or older on or before the effective date of the
18 amendatory act that added this section, and 1 or both of the
19 following conditions exist:

20 (i) The onsite wastewater treatment system is installed within
21 500 feet of any surface water or within a high risk erosion area,
22 critical dune, or 100-year floodplain, as these terms are
23 determined by the department.

24 (ii) The department or local health department does not have a
25 record of a construction permit being issued for the installation
26 of an onsite wastewater treatment system.

27 (b) Before a change in use or an increase in use of the
28 existing onsite wastewater treatment system.

29 (c) Any time in accordance with the statewide sewage code.



1 (d) Any time, if the evaluation is arranged or allowed by the
2 real property owner of a premises or structure.

3 (e) Within 10 years after the department promulgates rules
4 under section 12817, if the onsite wastewater treatment system is
5 30 years old or older on or before the effective date of the
6 amendatory act that added this section.

7 (3) After the first evaluation is conducted under subsection
8 (2), an onsite wastewater treatment system must be evaluated in
9 accordance with this section once every 10 years. Subject to the
10 statewide sewage code, after the first evaluation is conducted
11 under subsection (2), a local health department may determine that
12 an onsite wastewater treatment system does not require a subsequent
13 evaluation under this section if an approved onsite wastewater
14 treatment system is installed or corrective action, remedy, or
15 management steps are completed on the existing system. An owner of
16 a premises or structure not connected to a public sanitary sewer
17 that does not arrange for an evaluation under this subsection or
18 subsection (2) is not excluded from the requirement to arrange for
19 an evaluation. Beginning 10 years after the effective date of rules
20 promulgated by the department under section 12817, an onsite
21 wastewater treatment system must be evaluated every 10 years if the
22 system is 20 years old or older or if an evaluation was not
23 conducted under subsection (2) and the system is installed within
24 500 feet of surface water or within a high-risk erosion area,
25 critical dune, or 100-year floodplain, as determined by the
26 department.

27 (4) Not later than 10 years after the effective date of rules
28 promulgated under section 12817, a local health department may
29 submit an application on a form and in a manner prescribed by the

1 department to request an extension to the timeline requirements
2 under subsection (2). Not later than 60 days after a request for an
3 extension under this subsection is received, the department shall
4 grant or deny the extension. If the department denies the request
5 for an extension under this subsection, the department must state
6 the reasons for the denial in writing. An extension granted under
7 this subsection is valid for 1 year. A local health department may
8 apply for a subsequent extension in the same manner as an initial
9 extension under this subsection but may apply for not more than 2
10 extensions in total. The department shall consider all of the
11 following when determining whether to grant an extension under this
12 subsection:

13 (a) Documented lack of adequate funding to conduct
14 evaluations. Documentation under this subdivision must include, but
15 is not limited to, information on the financial standing of the
16 local health department and efforts made to raise funding,
17 including charging a fee as described under subsection (13).

18 (b) Documented lack of adequate evaluators or local health
19 department qualified staff to complete evaluations despite
20 documented efforts to hire needed staff.

21 (c) Documented inability to successfully complete the
22 evaluations required under subsection (2).

23 (5) An authorized local health department or evaluator shall
24 conduct an onsite wastewater treatment system evaluation not later
25 than 90 days after the owner of the system arranges for the
26 evaluation. An authorized local health department or evaluator may
27 work with individuals who are involved in the management of onsite
28 wastewater treatment systems, in accordance with the statewide
29 sewage code, to complete an evaluation under this subsection. An



1 authorized local health department shall not directly or indirectly
2 restrict or impair the ability of an evaluator to conduct an
3 evaluation within the authorized local health department's
4 jurisdiction. The owner of the system shall not have the septic
5 tank or tanks pumped out within 45 days before an onsite wastewater
6 treatment system evaluation is arranged under this section. At the
7 onsite wastewater treatment system evaluation, the authorized local
8 health department or evaluator shall do all of the following:

9 (a) Identify the size, age, and visible condition of the
10 septic tank or tanks.

11 (b) Before conducting any pumping, document the level of
12 effluent, in relation to the operating level in the septic tank or
13 tanks.

14 (c) Document the level of scum and sludge by measuring the
15 vertical column depth of each layer of stratified septic tank
16 contents for each tank or compartment and arrange for the services
17 of a septage waste servicing business licensed under part 117 of
18 the natural resources and environmental protection act, 1994 PA
19 451, MCL 324.11701 to 324.11721, to pump out the septic tank or
20 tanks, or recommend to the authorized local health department that
21 the septic tank or tanks be pumped out, if 1 of the following
22 applies:

23 (i) The authorized local health department or evaluator that
24 conducts the onsite wastewater treatment system evaluation
25 determines that it is necessary to complete the evaluation.

26 (ii) The sludge and scum accumulations within the septic tank
27 or tanks exceed 30% of each individual tank's volume or are
28 encroaching on the inlet or outlet.

29 (d) Verify that all sanitary sewage-related plumbing fixtures



1 are connected to the septic tank or tanks and are operational and
2 identify any sources of nonsanitary sewage-related connections to
3 the septic tank or tanks or the soil dispersal system that require
4 disconnection.

5 (e) Locate, expose, open, and assess the septic tank or tanks
6 and pumping chambers associated with the system. If the lid of any
7 septic tank or pumping chamber is greater than 12 inches below the
8 ground surface, the authorized local health department or evaluator
9 may require that the property owner uncover the lid or lids for
10 ease of access.

11 (f) If the system includes an alternative system or
12 proprietary product, identify that the required operation and
13 maintenance reporting is on file with the department or authorized
14 local health department. If the operation and maintenance reporting
15 are not up to date, notify the owner of the system of the need to
16 arrange for the required operation and maintenance by a qualified
17 service provider, subject to the statewide sewage code, and report
18 the findings to the authorized local health department. The
19 authorized local health department or evaluator shall assess and
20 report any unresolved issues identified in the required operation
21 and maintenance report.

22 (g) To the extent reasonable, locate, determine the size of,
23 and observe the subsurface dispersal system to determine its
24 condition.

25 (h) Document the location in relation to the site of any
26 attributes including, but not limited to, drinking water wells,
27 surface water, and other setbacks as required by the statewide
28 sewage code.

29 (i) Observe or find information regarding the location of a

1 well, as that term is defined in section 12701, and assess the
2 approximate distance between the nearest well and the onsite
3 wastewater treatment system, if applicable.

4 (j) Observe the general area that includes the treatment and
5 dispersal system for evidence of system failure or elements of a
6 nonconforming system.

7 (k) Examine the premises for an illicit discharge to,
8 including, but not limited to, the surface of the ground, surface
9 water, groundwater, or drain.

10 (l) Document conditions observed, evidence of failure, and
11 elements of a nonconforming system.

12 (m) Assess and report the ponding level found in inspection or
13 observation ports located in the soil dispersal system. If
14 inspection or observation ports are not found, or do not penetrate
15 to the bottom of the soil dispersal system, collect at least 2 core
16 samples across the soil dispersal system.

17 (n) Estimate the current daily sanitary sewage flow, identify
18 structure use type, and identity and collect information on the
19 proposed new or increase in use.

20 (o) Complete any other evaluation criteria set by the
21 department in the statewide sewage code.

22 (p) Prepare an evaluation report that contains the information
23 gathered under this subsection, including appropriate photographic
24 documentation taken at the evaluated premises.

25 (6) Not later than 14 days after the onsite wastewater
26 treatment system evaluation is completed, the authorized local
27 health department or evaluator that conducts the evaluation shall
28 do all of the following:

29 (a) Prepare an evaluation report that details the findings of

1 the onsite wastewater treatment system evaluation. An evaluation
2 report must be an objective and fact-based summary of conditions
3 observed on site at the time of the evaluation; must contain
4 information that follows standard report forms prescribed by the
5 department; and may contain recommendations to extend the life of
6 the onsite wastewater treatment system and prevent premature
7 failures of the system.

8 (b) Provide a printed or electronic copy of the evaluation
9 report to the owner of the onsite wastewater treatment system and
10 an electronic copy of the evaluation report to the authorized local
11 health department. An evaluation report must be provided under this
12 subsection even if the evaluation report is incomplete or the fee
13 provided for in subsection (13) or (14) was not paid.

14 (c) Provide a printed or electronic copy of the minimum
15 standards and criteria for conducting evaluations developed by the
16 department under section 12825(1) to the owner of the onsite
17 wastewater treatment system.

18 (7) An evaluation completed by an evaluator must be reviewed
19 by the authorized local health department. The authorized local
20 health department shall determine the need for pumping, elements of
21 a nonconforming system, determination of failure or imminent
22 danger, or resolution. Not later than 21 days after an evaluator
23 submits an evaluation report under subsection (6), the authorized
24 local health department must do all of the following:

25 (a) Based on the evaluation, determine the status of all of
26 the following:

27 (i) Whether the onsite wastewater treatment system is in
28 failure.

29 (ii) Whether elements of a nonconforming system are



1 contributing to an overall failure of the onsite wastewater
2 treatment system.

3 (iii) Whether elements of a nonconforming system are not
4 contributing to an overall failure and the onsite wastewater
5 treatment system meets a sufficient level of compliance and can be
6 managed in a manner to provide for the minimum level of protection
7 of public health and the environment to allow for continued use.

8 (iv) Whether the onsite wastewater treatment system meets a
9 sufficient level of compliance and can be managed to provide for
10 the minimum level of protection of public health and the
11 environment to allow for continued use.

12 (v) Whether the onsite wastewater treatment system is in
13 compliance with this part and the statewide sewage code.

14 (vi) Whether the evaluation report was unable to be completed
15 and the owner of premises or a structure not connected to public
16 sanitary sewer needs to take corrective actions to allow an
17 evaluator to complete an evaluation.

18 (b) Determine whether any corrective actions or management
19 steps must be taken by the owner of the onsite wastewater treatment
20 system to satisfy the requirements of the statewide sewage code and
21 this section.

22 (c) Determine whether the septic tank or tanks need to be
23 pumped and review the provided report for any pumping, to determine
24 if the relevant requirements of the statewide sewage code are
25 satisfied.

26 (d) Inform the owner of the onsite wastewater treatment system
27 of any determination made under subdivisions (a) to (c) and specify
28 an applicable time period for corrective actions to be completed.

29 (8) If the authorized local health department determines that

1 an evaluation report under subsection (6) identifies the need for
2 the septic tank or tanks to be pumped, the owner of the onsite
3 wastewater treatment system shall have the tank or tanks pumped by
4 a septage waste servicing business licensed under part 117 of the
5 natural resources and environmental protection act, 1994 PA 451,
6 MCL 324.11701 to 324.11721, not later than 60 days after the
7 evaluation report is received under subsection (6).

8 (9) Subject to subsection (11), if the owner of an onsite
9 wastewater treatment system or the owner of the premises or
10 structure not connected to a public sanitary sewer fails to arrange
11 for an onsite wastewater treatment system evaluation, fails to have
12 the system evaluated in accordance with the requirements of this
13 section, or fails to complete corrective actions identified under
14 subsection (7) (d), the owner is subject to the following:

15 (a) Beginning 60 days after the end of the applicable time
16 period under subsection (2), (3), or (7) and in the absence of good
17 cause shown by the owner under subsection (11), a civil fine of not
18 more than \$250.00 for each 30-day period that the system remains
19 unevaluated or corrective actions remain incomplete.

20 (b) Beginning 1 year after the end of the applicable time
21 period and in the absence of good cause shown, a civil fine of not
22 more than \$500.00 for each 30-day period that the system remains
23 unevaluated or corrective action remains incomplete, up to
24 \$15,000.00 in total civil fines under this subsection.

25 (10) Subject to subsection (11), if the authorized local
26 health department determines that an evaluation report under
27 subsection (6) identifies evidence of failure, the owner of the
28 onsite wastewater treatment system or the owner of the premises or
29 structure shall remedy the failure within 6 months after the



1 evaluation report is received under subsection (6) or within a time
2 period determined by the authorized local health department. An
3 owner that violates this subsection is subject to a civil fine of
4 not more than \$1,000.00 for each 30-day period that the failure
5 continues. The prosecutor of the county in which the violation
6 occurred or the attorney general may bring an action to collect the
7 fine and require remedy of the failure.

8 (11) The department may waive any fine authorized under
9 subsections (9) and (10) if the owner of the onsite wastewater
10 treatment system or the owner of the premises or structure not
11 connected to a public sanitary sewer demonstrates either of the
12 following:

13 (a) That the owner's income is at or below 400% of the federal
14 poverty guidelines, as published annually in the Federal Register
15 by the United States Department of Health and Human Services under
16 its authority to revise the poverty line under 42 USC 9902, and
17 that not later than 1 year after the owner had a completed
18 evaluation under this section or remedied any failure identified in
19 the onsite wastewater treatment system evaluation under subsection
20 (7). An extension to the 1-year timeline described under this
21 subdivision may be granted in accordance with the rules promulgated
22 under section 12817.

23 (b) That the payment of any fines under subsection (9) or
24 (10), or both, would pose significant financial stress on the owner
25 of the system and that not later than 1 year of the owner of the
26 system completed an evaluation under this section or remedied any
27 failure identified in the onsite wastewater treatment system
28 evaluation under subsection (7).

29 (12) In accordance with the statewide sewage code, if



1 determined necessary by the department and on request of an owner
2 of an onsite wastewater treatment system, the department may grant
3 a variance from the onsite wastewater treatment system evaluation
4 requirements under this section.

5 (13) An authorized local health department or evaluator may
6 charge a fee for conducting an onsite wastewater treatment system
7 evaluation. An authorized local health department may charge a
8 reasonable fee not to exceed the costs of conducting,
9 administering, and reviewing onsite wastewater treatment system
10 evaluations.

11 (14) In addition to the fee charged for conducting an onsite
12 treatment system evaluation under subsection (13), an authorized
13 local health department or evaluator, as applicable, shall charge
14 an additional \$50.00 state administrative fee. An evaluator shall
15 submit the administrative fee to the department at the same time an
16 evaluation report is submitted under subsection (6). State
17 administrative fees collected by a local health department must be
18 forwarded to the department on a quarterly basis. Beginning 3 years
19 after the effective date of the statewide sewage code, and every 3
20 years thereafter, the department shall adjust the state
21 administrative fee in this subsection by an amount determined by
22 the state treasurer to reflect the cumulative annual percentage
23 change in the Consumer Price Index. As used in this subsection,
24 "Consumer Price Index" means the most comprehensive index of
25 consumer prices available for this state from the Bureau of Labor
26 Statistics of the United States Department of Labor.

27 (15) All state administrative fees and civil fines authorized
28 and collected under this section must be forwarded to the state
29 treasurer for deposit into the fund.



1 (16) Beginning 2 years after the first civil fine is imposed
2 under subsection (9)(a), the civil fine constitutes a recorded lien
3 when filed at the register of deeds office on the real property
4 owned by the owner of the onsite wastewater treatment system or the
5 premises or structure from which the sanitary sewage originates. A
6 recorded lien under this subsection is effective and has priority
7 over all other liens and encumbrances except those filed or
8 recorded before the date the notice of the lien is filed or
9 recorded only if notice of the lien is filed or recorded as
10 required by state or federal law. A lien filed or recorded under
11 this subsection is terminated in accordance with the procedures
12 required by state or federal law not later than 14 days after the
13 owner has the system evaluated and pays the civil fine.

14 Sec. 12823. (1) Subject to subsection (2), to apply for a
15 registration as an evaluator, an individual shall meet the training
16 requirements established in the statewide sewage code and submit an
17 application on a form and in a manner prescribed by the department.
18 The department may charge a \$180.00 application fee to cover the
19 department's costs under this section. An application fee collected
20 under this section must be forwarded to the state treasurer for
21 deposit into the fund.

22 (2) Beginning on the effective date of the statewide sewage
23 code and for 3 years thereafter, an evaluator who has 3 years of
24 work experience, as determined by the department, does not have to
25 comply with the training requirements established in the statewide
26 sewage code.

27 (3) All evaluation reports received under section 12821(5) are
28 subject to an audit by the department. The department may
29 promulgate rules under section 12817 to implement an audit



1 authorized under this subsection. The department may suspend or
2 revoke a registration under subsection (5) following an audit
3 authorized under this subsection.

4 (4) A registration granted under this section is valid for 3
5 years. The department shall review individuals registered under
6 this section once every 3 years and renew a registration for any
7 individual who submits a renewal application and fee and who
8 continues to meet continuing education requirements. The department
9 may establish renewal fees or late fees. A registration described
10 under this section is nontransferable.

11 (5) A registration under this section may be denied,
12 suspended, or revoked following a contested case hearing conducted
13 in accordance with the administrative procedures act of 1969, 1969
14 PA 306, MCL 24.201 to 24.328, for any of the following reasons:

15 (a) The use of fraud or deceit in obtaining or renewing a
16 registration.

17 (b) An act of gross negligence, incompetence, or misconduct in
18 conducting or reporting on an onsite wastewater treatment system
19 evaluation.

20 (c) The failure to satisfactorily complete continuing
21 education requirements specified under the statewide sewage code.

22 (d) The submission of an evaluation report knowingly based on
23 false, incorrect, misleading, or fabricated information.

24 (e) The failure to submit an evaluation report.

25 (f) The failure to pay a required fee.

26 (g) The failure to meet the ethical standards established in
27 the statewide sewage code.

28 (h) Conviction in a civil or criminal proceeding or failure to
29 comply with a judgment or order that is issued by a court in



1 connection with a matter related to the conduct necessary to
2 provide the services of an evaluator.

3 (i) Any other violation of this part, part 127, the rules
4 promulgated under part 127, or the statewide sewage code.

5 (6) The department shall maintain a list of individuals
6 registered under this section and make the list available on the
7 department's website.

8 Sec. 12825. (1) The department shall develop and make
9 available minimum standards and criteria for conducting evaluations
10 and forms for use in documenting the management of onsite
11 wastewater treatment systems, including evaluation report forms for
12 onsite wastewater treatment system evaluations conducted under
13 section 12821.

14 (2) Ten years after the effective date of the amendatory act
15 that added this section, the department shall prepare and submit a
16 report to the legislature and governor that analyzes and evaluates
17 the results of the implementation of the statewide sewage code,
18 outlines needed areas of improvement, and assesses adjusting the
19 evaluation timelines specified under section 12821(2) and (3) based
20 on program data and trends.

21 (3) The department shall make available and maintain an on-
22 site wastewater treatment system electronic database for recording
23 and tracking the locations of onsite wastewater treatment systems
24 in this state and the findings of onsite wastewater treatment
25 system evaluations. The department may require an authorized local
26 health department to input the data described under this subsection
27 into the onsite wastewater treatment system electronic database.
28 The department shall provide authenticated access to the onsite
29 wastewater treatment system electronic database. The onsite



1 wastewater treatment system electronic database must contain all of
2 the following information:

3 (a) An evaluation report completed under section 12821. The
4 department may require an authorized local health department or
5 evaluator to electronically enter the report information into the
6 onsite wastewater treatment system electronic database instead of
7 the written report.

8 (b) Documentation and records from authorized local health
9 departments regarding the locations and previous evaluation or
10 inspection records of onsite wastewater treatment systems.

11 (c) Any other data, information, or record determined relevant
12 by the department.

13 (4) The onsite wastewater treatment system electronic database
14 created under subsection (3) must provide authenticated access to
15 authorized users to maintain the protected status of any sensitive
16 personal information contained within the database.

17 Sec. 12827. (1) Except as provided under section 12821(9) and
18 (10), a person, an owner of an onsite wastewater treatment system,
19 or an owner of a premises or structure that is not connected to a
20 public sanitary sewer system that fails to comply with this part,
21 part 127, a rule promulgated under part 127, or the statewide
22 sewage code is subject to the following:

23 (a) For a first violation, the person is guilty of a
24 misdemeanor punishable by imprisonment for not more than 90 days, a
25 fine of not less than \$500.00 or more than \$2,000.00, or both.

26 (b) For a second or subsequent violation, the person is guilty
27 of a misdemeanor punishable by imprisonment for not more than 180 days,
28 a fine of not less than \$1,000.00 or more than \$10,000.00, or both.

29 (2) Each day that a violation continues constitutes a separate



1 violation under subsection (1).

2 (3) When the department or an authorized local health
3 department determines that there are reasonable grounds to believe
4 there has been a violation of this part, part 127, the rules
5 promulgated under part 127, or the statewide sewage code, the
6 authorized local health department shall investigate the violation.
7 If the authorized local health department determines there has been
8 a violation, the department or authorized local health department
9 shall issue a notice and penalty, as applicable, under section
10 12803(1)(a)(ii) and order the responsible party to make corrections
11 to be in compliance with this part, part 127, the rules promulgated
12 under part 127, and the statewide sewage code.

13 (4) The prosecutor of the county in which the violation
14 occurred or the attorney general may bring an action to collect a
15 fine authorized under this section and require compliance with this
16 part, part 127, the rules promulgated under part 127, and the
17 statewide sewage code.

18 (5) A civil fine authorized and collected under this section
19 must be forwarded to the state treasurer for deposit into the fund.

20 (6) The department or an authorized local health department
21 may request that the attorney general or prosecutor of the county
22 in which the violation occurred commence a civil action for
23 appropriate relief, including a permanent or temporary injunction,
24 for a violation of this part, part 127, the statewide sewage code,
25 or a provision of a permit or order issued under this part or part
26 127. An action under this subsection may be brought in the circuit
27 court for Ingham County or for the county in which the defendant is
28 located, resides, or is doing business. If requested by the
29 defendant, within 21 days after service of process, the court shall



1 grant a change of venue to the circuit court for Ingham County or
2 for the county in which the alleged violation occurred, is
3 occurring, or, in the event of a threat of violation, will occur.
4 The court has jurisdiction to restrain the violation and require
5 compliance. In addition to any other relief granted under this
6 subsection, the court, except as otherwise provided in this
7 section, shall impose a civil fine of not less than \$2,500.00, and
8 the court may award reasonable attorney fees and costs to the
9 prevailing party.

10 (7) Final decision-making authority with respect to this part,
11 part 127, the rules promulgated under part 127, and the statewide
12 sewage code remains with the department. An authorized local health
13 department may perform delegated functions authorized by and with
14 direction from the department in accordance with the statewide
15 sewage code, but the department maintains ultimate enforcement
16 authority.

17 Sec. 12829. (1) The onsite wastewater treatment system
18 administration fund is created in the state treasury.

19 (2) The state treasurer may receive money or other assets from
20 any source for deposit into the fund. The state treasurer shall
21 direct the investment of the fund and credit to the fund interest
22 and earnings from fund investments.

23 (3) Money in the fund at the close of the fiscal year remains
24 in the fund and does not lapse to the general fund.

25 (4) The department is the administrator of the fund for
26 auditing purposes.

27 (5) The department shall expend money from the fund, on
28 appropriation, only for the following purposes:

29 (a) To administer this part.



1 (b) For grants to local health departments to carry out their
2 responsibilities under this part, including, but not limited to,
3 for the digitization of records of locations relating to onsite
4 wastewater treatment systems and the locations of drinking water
5 supply sources, including, but not limited to, onsite water wells
6 or a public water supply. As used in this subdivision:

7 (i) "Public water supply" means that term as defined in section
8 2 of the safe drinking water act, 1976 PA 399, MCL 325.1002.

9 (ii) "Well" means that term as defined in section 12701.

10 (c) For grants or loans to homeowners who are below 400% of
11 the federal poverty level for all associated costs applicable to
12 remedy a failure of an onsite wastewater treatment system
13 identified under section 12821 or to provide funds to compensate
14 for an arranged onsite wastewater treatment system evaluation. As
15 used in this subdivision, "federal poverty level" means the federal
16 poverty guidelines published annually in the Federal Register by
17 the United States Department of Health and Human Services under its
18 authority to revise the poverty line under 42 USC 9902.

19 (d) To administer a public outreach and educational campaign
20 to inform individuals on the requirements of section 12821 and the
21 importance of operation and maintenance of onsite wastewater
22 treatment systems.

23 (6) The department may contract with a qualified third-party
24 administrator to manage grants and loans made from the fund.

25 Sec. 12831. (1) If a local unit of government, county, or
26 local health department has a point of sale ordinance to require
27 evaluations of onsite wastewater treatment systems, the point of
28 sale ordinance must be consistent with and as stringent as the
29 requirements under this part. Local ordinances must meet the



1 requirements of sections 1115 and 2441.

2 (2) A point of sale ordinance may address occupancy in a
3 manner that complies with the regulations of the local health
4 department and is otherwise applicable to property of the same
5 type.

6 (3) As used in this section:

7 (a) "Local unit of government" means a township, city, or
8 village in this state.

9 (b) "Point of sale ordinance" means any ordinance or
10 regulation that requires an inspection or evaluation of onsite
11 wastewater treatment systems at or before the point of sale.

12 Sec. 12833. The department, under parts 31 and 41 of the
13 natural resources and environmental protection act, 1994 PA 451,
14 MCL 324.3101 to 324.3134 and 324.4101 to 324.4113, and this act,
15 and local health departments under this act, have exclusive
16 jurisdiction over the regulation, permitting, and evaluation of
17 onsite wastewater treatment systems.

18 Enacting section 1. This amendatory act takes effect 90 days
19 after the date it is enacted into law.